



CHAPTER xxv

An Act to authorise the North Devon Water Board to construct additional waterworks and to acquire lands to confer further powers upon the Board and for other purposes.

[9th July 1959.]

WHEREAS—

(1) By the North Devon Water Board Act and Orders 1945 to 1958 the North Devon Water Board (in this Act referred to as “the Board”) are authorised to construct certain waterworks and to supply water within an area including in the county of Devon the boroughs of Barnstaple Tiverton and Great Torrington the urban districts of Holsworthy Lynton and Northam the rural districts of Bideford Broadwoodwidge Crediton Holsworthy Okehampton South Molton Tiverton and Torrington and parts of the rural districts of Barnstaple Saint Thomas and Tavistock and in the county of Cornwall part of the rural district of Stratton:

(2) With a view to ensuring that the Board shall be and continue to be in a position to meet the demands made upon them for the supply of water it is expedient that the Board should be empowered to construct the new works described in this Act and to abstract water by means thereof and to acquire lands for the purpose thereof:

(3) The time limited by certain enactments for the completion of certain works by the Board will shortly expire and it is expedient that the time so limited should be extended as by this Act provided:

(4) Estimates have been prepared for the purposes hereinafter mentioned and such estimates are as follows:—

	£
For the purchase of lands under the powers of this Act	1,200
For the construction of the works authorised by this Act	100,400
	£101,600

(5) The works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

(6) It is expedient to empower the Board to borrow moneys for the said purposes:

(7) It is expedient that the other powers contained in this Act should be conferred and that the other provisions of this Act should be enacted:

(8) The objects of this Act cannot be attained without the authority of Parliament:

(9) Plans and sections showing the lines situations and levels of the works authorised by this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act have been duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the county council of the county of Devon which plans sections and book of reference are in this Act respectively referred to as the deposited plans the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

1.—(1) This Act may be cited as the North Devon Water Act 1959.

(2) The North Devon Water Board Act and Orders 1945 to 1958 and this Act may be cited together as the North Devon Water Acts and Orders 1945 to 1959.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Works.

Part III.—Lands.

Part IV.—Financial provisions.

Part V.—Miscellaneous.

PART I
—cont.Division of
Act into
Parts.

3. The following enactments (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act:—

(a) the Lands Clauses Acts with the following exceptions and modifications:—

(i) section 92 and sections 127 to 133 of the Lands Clauses Consolidation Act 1845 and section 5 of the Lands Clauses Consolidation Acts Amendment Act 1860 are not incorporated with this Act;

(ii) the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section;

(iii) the expression “the promoters of the undertaking” shall be construed to mean the Board;

(b) section 16 of the Railways Clauses Consolidation Act 1845 and the provisions of that Act with respect to the temporary occupation of lands near the railway during the construction thereof:

Provided that—

(i) for the purposes of the said provisions the expression “the railway” shall be construed to mean the works authorised by this Act the expression “the centre of the railway” shall be construed to mean the centre line of the aqueducts (Works Nos. 3 4 and 6) authorised by this Act and the expression “the company” shall be construed to mean the Board;

(ii) any electrical works or apparatus erected or constructed under the said section 16 (as incorporated by this section) shall be so erected or constructed and so maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line;

(c) the following provisions of the Third Schedule to the Water Act 1945:—

Part I (Interpretation) so far as it relates to the following provisions of the said Third Schedule;

PART I
—cont.

Part II (Works and Lands) except sections 3 and 9;

Part IV (Minerals Underlying Waterworks);

Part VI (Breaking Open Streets &c.);

In Part XVI (General and Miscellaneous) sections 92 and 94:

Provided that the incorporated provisions of the Third Schedule to the Water Act 1945 shall be read and have effect as if—

(i) in section 2 of the said schedule for the words “the plans submitted to the Minister” there were substituted the words “the deposited plans” and for the words “the said plans” there were substituted the words “the deposited sections”;

(ii) in section 4 of the said schedule the words from the beginning of the section to the words “abstract water” shall be omitted and after the word “pipes” there shall be inserted the words “cables wires”;

(iii) in section 12 of the said schedule for the words “after this section is incorporated with their enactments” there were substituted the words “under the special Act” for the words “all existing pipes or other conduits for the collection passage or distribution of water and underground works belonging to them” there were substituted the words “all such pipes or other conduits or underground works” and as if the words “for the time being belonging to them” were omitted;

and for the purposes of the said incorporated provisions the expression “the undertakers” shall be construed to mean “the Board”.

Interpretation. 4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Third Schedule to the Water Act 1945 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“Act of 1945” means the North Devon Water Board Act 1945;

“Act of 1933” means the Local Government Act 1933;

“Board” means the North Devon Water Board;

“county” and “county council” mean respectively the administrative county of Devon and the county council of that county;

“ day ” means a day of twenty-four hours reckoned from midnight;

“ Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Town and Country Planning Act 1947 by the Lands Tribunal Act 1949 by the Town and Country Planning Act 1954 and by this Act;

“ Minister ” means the Minister of Housing and Local Government;

“ tribunal ” means the Lands Tribunal;

“ undertaking ” means the undertaking of the Board as from time to time authorised;

and any Act or Order included in the North Devon Water Board Act and Orders 1945 to 1958 is referred to in this Act as the Act or Order of the year in which it was passed or made or confirmed by Parliament.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

WORKS

5. Subject to the provisions of this Act the Board may make and maintain in the lines and situations and according to the levels shown on the deposited plans and sections and upon the lands delineated on those plans and described in the deposited book of reference the following works in the county:—

Work No. 1 A pumping station in the parishes of Belstone and South Tawton in the rural district of Okehampton and the parish of Lydford in the rural district of Tavistock and all such wells and bores as may be necessary or expedient for the purpose of abstracting water by means of the pumping station;

Work No. 2 A balancing tank in the said parish of Belstone;

Work No. 3 An aqueduct or line or lines of pipes in the said parishes of Belstone and South Tawton and the said parish of Lydford commencing in the pumping station Work No. 1 and terminating in the balancing tank Work No. 2;

Work No. 4 An aqueduct or line or lines of pipes in the said parish of Belstone commencing in the balancing tank Work No. 2 and terminating in the enclosure numbered 347 on the 1/2500 Ordnance map of Devonshire sheet LXXVII-5 (revision of 1936);

PART II
—cont.

Work No. 5 An overflow and scour or line or lines of pipes in the said parish of Belstone commencing in the balancing tank Work No. 2 and terminating in the river Taw;

Work No. 6 An aqueduct or line or lines of pipes in the said parish of Belstone commencing in the balancing tank Work No. 2 and terminating in the river Taw;

Work No. 7 A washout pipe in the said parish of Belstone commencing at a point in the aqueduct or line or lines of pipes Work No. 4 six hundred and thirty yards or thereabouts from the commencement thereof and terminating in the river Taw;

Work No. 8 An access track in the said parishes of Belstone Lydford and South Tawton connecting the wells and bores forming part of the pumping station Work No. 1;

Work No. 9 An alteration and improvement of the existing access track in the said parishes of Belstone and South Tawton leading from the southern boundary of the enclosure numbered 359 on the 1/2500 Ordnance map of Devonshire sheet LXXVII-5 (revision of 1936) in the said parish of Belstone to the access track Work No. 8 in the said parish of South Tawton;

Work No. 10 A break pressure tank in the said parish of Belstone.

Period for
completion
of works.

6. If the works authorised by this Act and shown upon the deposited plans and sections are not completed within a period of ten years from the passing of this Act then as from the expiration of that period the powers granted by this Act for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed:

Provided that the Board may extend enlarge alter reconstruct renew or remove any of the said works as and when occasion may require.

Works to
form part of
undertaking.

7. The works authorised by this Act shall for all purposes be deemed part of the undertaking.

Power to
take waters.

8. Subject to the provisions of this Act the Board may take use and appropriate for the purposes of the undertaking any underground water which may be intercepted by the pumping station and wells and bores (Work No. 1) authorised by this Act:

Provided that the Board shall not so take—

(a) in any period of thirty days a greater quantity than sixty million gallons;

(b) in any day a greater quantity than two and a half million gallons;

PART II
—cont.

together with the addition in each case of such quantity of water as the Board are by section 9 (Provisions as to compensation water) of this Act required to discharge into the river Taw.

9.—(1) (a) As from the completion and first operation of the pumping station (Work No. 1) authorised by this Act the Board shall discharge into the river Taw such quantity of water as may be necessary to ensure that there is flowing over an approved self-recording gauge constructed at the intake weir (Work No. 1) authorised by the Act of 1945 in every day in a uniform and continuous flow the specified quantity of water and for the purpose of measuring such flow the Board shall maintain in good order the said gauge. Provisions as to compensation water.

(b) In any case where under the foregoing provisions of this section a variation in the rate at which water has to be discharged into the river Taw is required as a result of a variation in the rate at which water is being taken and appropriated by means of the pumping station and wells and bores (Work No. 1) authorised by this Act the Board shall ensure that so far as is reasonably practicable the two operations take place simultaneously.

(2) If the Board—

(a) fail to comply with the requirements of subsection (1) of this section with respect to the construction or maintenance in good order of any such gauge or refuse to allow any person interested to inspect and examine any such gauge or any records made thereby or kept by them in connection therewith or to take copies of any such records; or

(b) fail to comply with the requirements of subsection (1) of this section with respect to the discharge of water into the river Taw;

they shall without prejudice to their civil liability (if any) to a person affected by such non-compliance be liable in the case of an offence under paragraph (a) of this subsection to a penalty not exceeding fifty pounds in respect of each day on which the offence has been committed or has continued and in the case of an offence under paragraph (b) of this subsection—

(i) on summary conviction to a fine not exceeding fifty pounds in respect of each such day; and

(ii) on conviction on indictment to a fine not exceeding five hundred pounds in respect of each such day.

PART II
—cont.

(3) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water which the Board can take use or appropriate by means of the pumping station (Work No. 1) authorised by this Act and the other works authorised by this Act.

(4) (a) After the expiration of seven years from the completion and first operation of the pumping station (Work No. 1) authorised by this Act the Minister may on the application of the Board or of the Devon River Board by order alter amend or vary the provisions of this section relating to the specified quantity in such manner as he shall think fit having regard to the circumstances prevailing at the date of such application.

(b) The power conferred on the Minister by paragraph (a) of this subsection to make orders shall be deemed to include a power exercisable in the like manner and subject to the same conditions to vary or revoke any such order.

(c) The provisions of Part I of the First Schedule to the Water Act 1945 shall apply to the making of applications and orders under the foregoing paragraph (a) of this subsection and all orders made under the said paragraph shall in the circumstances specified in paragraph 8 of the said schedule be subject to special parliamentary procedure:

Provided that in the case of an application made by the Devon River Board paragraph 3 of the said Part I shall have effect as if the Board were named therein as a body upon which a copy of the notice therein mentioned is required to be served.

(5) In this section the following expressions have the meanings hereby respectively assigned to them:—

“gauge” includes a gauge weir or other apparatus for measuring the flow of water;

“approved” means approved by the Minister;

“specified quantity” means—

(a) when the Board are taking water by means of the pumping station and wells and bores (Work No. 1) authorised by this Act at a rate not exceeding that of one million gallons a day a quantity of one million gallons;

(b) when the Board are so taking water at a rate exceeding that of one million gallons a day but not exceeding that of one and a half million gallons a day a quantity of one and one-eighth million gallons; and

(c) when the Board are so taking water at a rate exceeding that of one and a half million gallons a day a quantity of one and one-quarter million gallons.

PART II
—cont.

10. Notwithstanding anything in this Act or the Act of 1945 the Board shall not take any water from the river Taw by means of the intake weir (Work No. 1) authorised by the Act of 1945 at any time after the pumping station (Work No. 1) authorised by this Act has been completed and brought into operation.

Restriction on taking water from river Taw.

11. The period limited by section 74 (Period for completion of works) of the Act of 1945 (as amended by section 2 of the North Devon Water Board (No. 2) Order 1955) for the completion of the intake weir (Work No. 1) the treatment works and service reservoir (Work No. 3) and the service reservoir (Work No. 15) authorised by that Act is hereby extended until the first day of October nineteen hundred and sixty-five.

Extension of time for completion of works.

PART III

LANDS

12.—(1) Subject to the provisions of this Act the Board may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purpose of the works authorised by this Act.

Power to acquire lands.

(2) The powers of the Board for the compulsory purchase of land under this section shall cease after the expiration of three years from the first day of October nineteen hundred and fifty-nine.

(3) The Board shall not under the powers of this Act serve notice to treat for the acquisition of any lands required for the purposes of Works Nos. 3 4 5 and 6 so far as such works are constructed under ground unless it is agreed between the Board and the owner or failing agreement determined by arbitration that the said works cannot reasonably be provided and maintained under an easement or right acquired under section 19 (Power to acquire easements only) of this Act.

(4) The Board shall not under the powers of this section enter upon take or use the land in the parish of Belstone in the rural district of Okehampton delineated on the deposited plans and described in the deposited book of reference and therein numbered 10 or any part of that land.

PART III

—*cont.*

Correction
of errors in
deposited
plans and
book of
reference.

13.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land or in their statement or description of the ownership or occupation of any land the Board after giving ten days' notice to the owner lessee and occupier of the land in question may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments and a copy thereof in the Private Bill Office House of Commons and with the clerk of the county council and with every clerk of a local authority and chairman of a parish council or parish meeting with whom a copy of the deposited plans (or of so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the standing orders of the Houses of Parliament or who has the custody of any such copy so deposited and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Board to take the land and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

Acquisition
of part only
of certain
properties.

14.—(1) For the purposes of this Act the following provisions of this section shall have effect in substitution for section 92 of the Lands Clauses Consolidation Act 1845.

(2) No person shall be required to sell a part only of any house building or factory or of a park or garden belonging to a house if he is willing and able to sell the whole of the house building factory park or garden unless the tribunal determines—

(a) in the case of a house building or factory that such part as is proposed to be taken can be taken without material detriment to the house building or factory; or

(b) in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(3) If the tribunal determines as aforesaid compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Board that part of the house building factory park or garden.

15. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act but not less than one month after giving the owner and occupier of the land notice of their intention to exercise the powers of this section the Board may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845:

PART III
—cont.

Power to expedite entry.

Provided that the Board shall pay the like compensation for land of which possession is taken under this section and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

16. Any person acting on behalf of the Board and duly authorised by the clerk of the Board may at all reasonable times enter on any land that may be acquired compulsorily under this Act for the purpose of surveying or valuing the land:

Power to enter for survey or valuation.

Provided that no land shall be entered under this section unless the Board not less than twenty-four hours before the first entry and not less than twelve hours before any subsequent entry have given notice to the owner and occupier of the land.

17. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the tribunal shall not take into account—

Disregard of recent improvements and interests.

(a) any improvement or alteration made or building erected after the fifth day of December nineteen hundred and fifty-eight; or

(b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.

18.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall as from the acquisition of the land whether compulsorily or by agreement be extinguished.

Extinction of private rights of way.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Board compensation to be determined in case of dispute under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

PART III
—cont.Power to
acquire
easements
only.

19.—(1) In lieu of acquiring any land that may be acquired under this Act the Board may for the purposes of constructing using and maintaining so much of the works authorised by this Act as will be constructed under ground and doing anything necessary in connection therewith acquire such easements and rights in that land as they may require for those purposes.

(2) Accordingly the Board may give notice to treat in respect of any such easement or right describing the nature thereof and the provisions of the Lands Clauses Acts and of this Act shall apply in relation to the acquisition of such easements and rights as if they were lands within the meaning of those Acts.

(3) Where the Board have acquired an easement or right only in any land under this section—

(a) they shall not be required or (except by agreement or during the execution of the said works) entitled to fence off or sever that land from the adjoining land;

(b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use the land as if this Act had not been passed.

(4) If in his particulars of claim the owner of any land in respect to which notice to treat for an easement or right is given under this section requires the Board to acquire the land the Board shall not be entitled under this section to acquire the easement or right unless the tribunal determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house:

Provided that nothing in this subsection shall apply to land forming part of a street.

(5) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (4) of this section.

Agreements
with
adjoining
owners.

20.—(1) The Board may enter into and carry into effect agreements with any person being the owner of or interested in any land abutting on any portion either of the works authorised by this Act or of land that may be acquired under this Act with respect to the sale by the Board to him of any land.

(2) The Board may accept as satisfaction of the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Board for the purposes of this Act or any easement or right so required.

PART IV

FINANCIAL PROVISIONS

Power to
borrow.

21.—(1) The Board may from time to time independently of any other borrowing power borrow at interest without the

consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table:—

PART IV
—cont.

(1) Purpose	(2) Amount
(a) The purchase of lands for the works authorised by this Act (hereafter in this Act referred to as " Purpose No. 1 ")	£ 1,200
(b) The construction of the works authorised by this Act other than pumping machinery and the works specified in paragraph (d) of this table (hereafter in this Act referred to as " Purpose No. 2 ")	43,300
(c) The construction of pumping machinery forming part of Work No. 1 (hereafter in this Act referred to as " Purpose No. 3 ")	24,750
(d) The construction of pipes and other waterworks purposes (hereafter in this Act referred to as " Purpose No. 4 ")	32,350
(e) The payment out of capital of interest on moneys borrowed for and in connection with the purchase of lands for and the construction of the works authorised by this Act until the completion and first operation of the pumping station (Work No. 1) authorised by this Act or until the expiration of five years from the date or dates of borrowing whichever shall first happen (hereafter in this Act referred to as " Purpose No. 5 ")	The sum required
(f) The payment of the costs charges and expenses preliminary to and of and incidental to the promotion and obtaining of this Act (hereafter in this Act referred to as " Purpose No. 6 ")	The sum required

(2) The Board shall pay off all moneys borrowed under subsection (1) of this section within such periods from the date or dates of borrowing as they may determine not exceeding—

- (a) as to moneys borrowed for Purpose No. 1 sixty years;
- (b) as to moneys borrowed for Purpose No. 2 thirty years;
- (c) as to moneys borrowed for Purpose No. 3 fifteen years;
- (d) as to moneys borrowed for Purpose No. 4 thirty-five years;
- (e) as to moneys borrowed for Purpose No. 5 in relation to Purpose No. 1 sixty years in relation to Purpose No. 2 thirty years in relation to Purpose No. 3 fifteen years and in relation to purpose No. 4 thirty-five years;
- (f) as to moneys borrowed for Purpose No. 6 five years.

PART IV
—cont.Application
of Part IX
of Act of
1933.

22.—(1) The provisions of Part IX of the Act of 1933 and of the regulations made thereunder so far as they are not inconsistent with the provisions of this Act shall extend and apply to the Board and to money borrowed by the Board as if—

- (a) the Board were a local authority within the meaning of the Act of 1933;
- (b) the money so borrowed were borrowed under the said Part IX; and
- (c) the revenues of the Board were the general rate fund or the revenues of the local authority;

and subject to any other modifications which may be necessary to adapt the said Part IX and regulations for the purpose of this section:

Provided that it shall not be obligatory on the Board to commence the repayment by sinking fund or otherwise of any moneys borrowed for Purpose No. 1 Purpose No. 2 Purpose No. 3 and Purpose No. 4 until the thirty-first day of March next after the completion of the last of the works in respect of which the moneys are borrowed or until the expiration of five years from the date or dates of borrowing whichever shall first happen.

(2) The periods mentioned in the third column of the table contained in section 21 (Power to borrow) of this Act shall as respects any money borrowed under that section respectively be the fixed period for the purposes of the said Part IX.

Saving for
powers of
Treasury:

23. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the powers of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Payment of
interest on
moneys
borrowed
until
completion of
works.

24. Notwithstanding anything in this Act or in any Act wholly or partially incorporated therewith the Board may pay interest on any moneys borrowed under this Act for Purpose No. 1 Purpose No. 2 Purpose No. 3 and Purpose No. 4 out of moneys borrowed under this Act for Purpose No. 5 but only until the completion and first operation of the pumping station (Work No. 1) authorised by this Act or until the expiration of five years from the date or dates of borrowing whichever shall first happen.

PART V

MISCELLANEOUS

Preservation
of natural
amenities.

25.—(1) The Board shall carry out the construction of the access track (Work No. 8) and the alteration and improvement of the existing access track (Work No. 9) authorised by this Act by means of hardcore surfaced with sand or other suitable natural

material and no kerbing or other permanent form of construction shall be used without the previous consent in writing of the local planning authority.

PART V
—cont.

(2) The access track (Work No. 8) shall not be constructed in a straight line and the alignment thereof shall be such as shall be reasonably approved by the local planning authority.

(3) All wells forming part of the pumping station (Work No. 1) the balancing tank (Work No. 2) and the break pressure tank (Work No. 10) authorised by this Act shall be covered and embanked with soil stones or other suitable natural material to the reasonable satisfaction of the local planning authority.

(4) Notwithstanding anything in this Act the Board shall not under the powers of this Act for the purpose of the pumping station (Work No. 1) and the balancing tank (Work No. 2) authorised by this Act enter upon take or use land exceeding one-eighth of an acre—

(a) for each of the wells forming part of the said pumping station;

(b) for the said balancing tank.

(5) No electrical wires or cables constructed under the powers of this Act shall be placed above ground without the previous consent in writing of the local planning authority.

(6) No wall or fence shall be erected and no notice shall be displayed in connection with the works authorised by this Act without the previous consent in writing of the local planning authority but such consent shall not be unreasonably withheld.

(7) Within six months after the completion of the works authorised by this Act the Board shall—

(i) fill to ground level (except so far as may be otherwise agreed between the Board and the local planning authority) all excavations and scars caused by the construction of the said works and cover such excavations and scars to the reasonable satisfaction of the local planning authority;

(ii) remove all temporary works plant machinery and buildings erected for the purposes of or in connection with the said works and surplus excavated materials and shall so far as is reasonably practicable to the like satisfaction restore and make good the surface of the ground.

(8) Any difference arising between the Board and the local planning authority under this section shall be referred to and determined by the Minister whose decision shall be final.

(9) In this section the expression “local planning authority” has the meaning assigned to it by section 4 of the Town and Country Planning Act 1947.

PART V
—cont.

For
protection
of South
Western
Electricity
Board.

26. For the protection of the electricity board the following provisions shall unless otherwise agreed in writing between the Board and the electricity board apply and have effect:—

- (1) Notwithstanding anything in this Act or shown on the deposited plans the Board shall not acquire otherwise than by agreement any apparatus:
- (2) If the Board in the exercise of the powers of this Act acquire any interest in any lands in under over or across which any apparatus is placed they shall not seek to remove that apparatus or to extinguish any right of the electricity board to maintain repair renew or inspect that apparatus in under over or across those lands until adequate alternative apparatus shall have been constructed and be in operation to the reasonable satisfaction of the electricity board:
- (3) If the Board for the purpose of exercising the powers of this Act require the removal of any apparatus and give to the electricity board written notice of such requirement together with a plan and section of the work proposed and of the proposed position in which facilities and rights for the construction of adequate alternative apparatus will be afforded as hereinafter provided or if in consequence of the exercise of the powers of this Act the electricity board shall require to remove any apparatus the Board shall afford to the electricity board the necessary facilities and rights for the construction of adequate alternative apparatus in on or over other land of the Board and thereafter for the maintenance repair renewal and inspection of such apparatus:
Provided that if the Board are unable to afford facilities and rights as aforesaid the electricity board shall on receipt of a written notice to that effect from the Board forthwith use their best endeavours to obtain the necessary facilities and rights over other land:
- (4) The Board shall pay to the electricity board the amount by which the costs charges and expenses reasonably incurred by the electricity board in connection with any removal or alteration of any apparatus or the construction of any new apparatus that may be required in consequence of the exercise of the powers of this Act shall exceed the value of any apparatus removed in consequence of alternative apparatus being provided and shall also make compensation to the electricity board for any damage caused to any apparatus in consequence of the exercise of the said powers:
- (5) The Board shall not carry out any work authorised by this Act near to which any apparatus has been lawfully

placed except in accordance with and subject to the provisions of section 18 of the schedule to the Electric Lighting (Clauses) Act 1899:

Provided that for the purposes of this subsection the said section 18 shall have effect as if the words “fourteen days” were substituted for the words “three days” in subsection (1) thereof:

(6) Any difference which may arise between the Board and the electricity board under this section or under section 18 of the said schedule shall be referred to and determined by arbitration:

(7) In this section—

“apparatus” means any electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to the electricity board including any works constructed for the lodging therein of apparatus but not apparatus in respect of which the relations between the Board and the electricity board are regulated by the Public Utilities Street Works Act 1950 and the expression “adequate alternative apparatus” means alternative apparatus adequate to enable the electricity board to fulfil their statutory functions in a manner not less efficient than previously;

“the electricity board” means the South Western Electricity Board.

27. Where under this Act any question or dispute is to be referred to arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) then unless otherwise provided the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed by the President of the Institution of Civil Engineers on the application of either party (after notice in writing to the other). Arbitration.

28. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Board to take use or in any manner interfere with any land or hereditaments belonging to or in the occupation of the Crown or any government department or in respect of which the Crown or any government department has any right or interest. Crown rights.

29. In particular and without prejudice to the general law concerning the applicability of statutes to the Duchy of Cornwall nothing in this Act shall authorise the Board to enter upon take use or interfere with any land soil or water or take away diminish alter prejudice or affect any property rights profits privileges powers or authorities belonging to or enjoyed by Her Majesty in right of the Duchy of Cornwall or to or by the Duke Saving rights of Duchy of Cornwall.

PART V
—cont.

of Cornwall for the time being without (in the case of land soil water property rights profits privileges or authorities belonging to or enjoyed by Her Majesty in right of the said Duchy) the consent in writing of some two or more of such of the regular officers of the said Duchy or of such other persons as may be duly authorised under section 39 of the Duchy of Cornwall Management Act 1863 to exercise all or any of the rights powers privileges and authorities by the said Act made exercisable or otherwise for the time being exercisable in relation to the said Duchy or (in the case of land soil water property rights profits privileges or authorities belonging to or enjoyed by the Duke of Cornwall for the time being) the consent of such Duke testified in writing under the seal of the Duchy of Cornwall first had and obtained for that purpose.

Saving for
town and
country
planning.

30. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

31. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board and may be paid out of the revenue of the undertaking or out of moneys borrowed under the powers of this Act.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845	8 & 9 Vict. c. 18.
Railways Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 20.
Lands Clauses Consolidation Acts Amendment Act 1860	23 & 24 Vict. c. 106.
Duchy of Cornwall Management Act 1863 ...	26 & 27 Vict. c. 49.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Electric Lighting Act 1882	45 & 46 Vict. c. 56.
Electric Lighting (Clauses) Act 1899	62 & 63 Vict. c. 19.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Water Act 1945	8 & 9 Geo. 6 c. 42.
North Devon Water Board Act 1945	9 & 10 Geo. 6 c. vi.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
Lands Tribunal Act 1949	12 13 & 14 Geo. 6 c. 42.
Public Utilities Street Works Act 1950 ...	14 Geo. 6 c. 39.
Town and Country Planning Act 1954 ...	2 & 3 Eliz. 2 c. 72.

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